

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

HASSAM KHAN

-against-

THE CITY OF NEW YORK (CITY); MARK SCARLATELLI, STEVEN MARSHALL, and JOHN RYAN; individually and in their official capacities as New York City Police Officers; JOHN DOES, supervisory police officers of the City of New York, the identity and number of whom is presently unknown

**COMPLAINT under the CIVIL RIGHTS
ACT 42 U.S.C. § 1983**

Index No. _____

JURY DEMANDED

Plaintiff, HASSAM KHAN (“Khan”) by and through his attorneys, Greenberg and Wilner, LLP, state and allege the following claims against the above named Defendants as follows:

PRELIMINARY STATEMENT

1. This is a civil action seeking compensatory damages, punitive and monetary relief from Defendants, THE CITY OF NEW YORK, MARK SCARLATELLI (“SCARLATELLI”), STEVEN MARSHALL (“MARSHALL”), JOHN RYAN (“RYAN”), and JOHN DOES for the brutal attack of Plaintiff and the denial of Plaintiff’s basic civil rights.
2. On the evening of December 26, 2013, Khan was driving his automobile on Regis Drive (located in the county of Richmond, City and State of New York, in the Eastern District of New York) directly outside of his home, looking for a parking spot when three undercover police officers emerged from a minivan with guns drawn and pulled Khan out of his car, pushed Khan’s chest against the car, and

slammed Khan's head directly into the roof of his vehicle, resulting in the loss of two of Plaintiff's teeth and began to search Plaintiff.

3. After finding no evidence of any illegal activity on the part of Plaintiff, one of the police officers insisted that Khan was intoxicated and had caused a collision. Khan was not intoxicated and as such responded that he was completely sober.
4. Shortly thereafter, Khan began to shout to a crowd of neighbors who had gathered that the officer had knocked out his teeth. At this point MARSHALL handcuffed Khan and wrongfully arrested him for disorderly conduct, resisting arrest recklessly driving and obstructing governmental administration.
5. Defendants unlawful, inappropriate, abusive, unauthorized and/or negligent actions constitute civil rights and constitutional violations.

JURISDICTION AND VENUE

6. Federal original subject matter jurisdiction exists as the facts of this case arise under and are based upon federal law.
7. Specifically, this is a claim for a violation of plaintiff's civil rights as protected by the Constitution and laws of the United States under 42 U.S.C. §§ 1983, 1985 and 1986, and the laws of New York.
8. This court has jurisdiction under 28 U.S.C §§1331, 1343 and 1367. And the aforementioned statutory and constitutional provisions. Plaintiff further invokes the pendant jurisdiction of this Court, pursuant to 28 U.S.C. § 1367, to hear and decide any and all claims arising under state law.
9. Venue is proper in this district under 28 U.S.C. § 1391 (b).

PARTIES

10. Plaintiff, HASSAM KHAN, at all times herein mentioned resides at 255 Regis Drive, Staten Island, New York 10314 in the County of Richmond, State of New York, in the Eastern District of New York.
11. Defendant, City of New York (City), is a municipal corporation within the State of New York and the public employer of the police officers named as defendants in this action.
12. Officers MARK SCARLATELLI, STEVEN MARSHALL, and JOHN RYAN were and still are officers employed by the New York City Police Department (“NYPD”) and the City of New York.

NOTICE OF CLAIM

13. Plaintiff, in furtherance of their state causes of action, filed timely notice of claim against the City in compliance with General Municipal Law, Section 50.
14. More than thirty (30) days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.
15. This action has been commenced within one year and ninety days after the happening of the events upon which these claims arise.

FACTUAL AND GENERAL ALLEGATIONS

16. On or about December 26, 2013 the Plaintiff was driving in his automobile on Regis Drive (located in the county of Richmond, City and State of New York, in the Eastern District of New York), directly outside of his home, looking for a parking spot when three undercover police officers emerged from their vehicle (a minivan) with a gun and pulled Plaintiff out of his car and pushed his chest against the car.

17. A police officer, SCARLATELLI, then slammed Plaintiff's head directly into the roof of the vehicle, resulting in the loss of two of Plaintiff's teeth, and began to search Plaintiff.
18. The police officer, SCARLATELLI, then took Plaintiff's cell phone and keys and threw them into the car.
19. SCARLATELLI then asked Plaintiff where the drugs were. When Plaintiff answered that he did not have any drugs SCARLATELLI and his partner began searching the car without Plaintiff's permission.
20. After finding no evidence of any illegal activity the police officer insisted that Plaintiff was intoxicated and had caused a collision.
21. Plaintiff was not intoxicated and as such responded that he was completely sober.
22. At this point, Plaintiff's family and neighbors began approaching the scene and Plaintiff told them that SCARLATELLI had knocked out his teeth.
23. SCARLETELLI stated that he did not knock out Plaintiff's teeth and told Plaintiff to calm down and that no one was going to jail.
24. Plaintiff's neighbor, who is a war veteran, approached the scene with his military ID and asked SCARLETELLI what Plaintiff had done wrong.
25. SCARLETELLI told the neighbor to back off and Plaintiff frantically told the neighbor that SCARLETELLI had knocked out his teeth.
26. SCARLETELLI then told Plaintiff if he kept telling people that he knocked out his teeth he would charge Plaintiff with resisting arrest.
27. Plaintiff continued to say "he knocked out my teeth" and the other police officer, MARSHALL, approached Plaintiff and said "you think you can do whatever you

want, because of that I'm going to arrest you." He then handcuffed Plaintiff and took him to the driver's side of the car.

28. Plaintiff asked the officers if he could look on the ground for pieces of his teeth.

The police officer then pointed his flashlight to the ground but he could not find any segment of Plaintiff's teeth. He then pointed his flashlight to the roof of the car and Claimant saw his teeth visibly indented into the roof of the car. Plaintiff then exclaimed "those are part of my teeth" and MARSHALL put Plaintiff into the undercover minivan and drove off.

29. Plaintiff sustained serious physical injuries including but not limited to the loss of two front teeth, and other serious injuries.

30. That no other lawsuit has been filed in any other state or federal court dealing with the same facts

CAUSES OF ACTION

COUNT 1

42 U.S.C § 1983 Conspiracy

31. Paragraphs 1-30 are incorporated by reference as though fully set forth below.

32. Defendants, SCARLATELLI, MARSHALL and RYAN, under color of law, conspired with one another to deprive Khan of his constitutional rights, including the rights: to be free from the intentional use of unreasonable force, to be free from unreasonable searches and seizures; to associate and speak freely; to have access to and seek redress in the courts; and to be free from false arrest, and false imprisonment.

33. It was part of the conspiracy that the defendants SCARLATELLI, MARSHALL and RYAN, did, among other acts, physically and brutally assault Khan.

34. In furtherance of the conspiracy and in order to cover up the acts of brutality defendants engaged in

- a. falsely arresting and imprisoning Khan;
- b. fabricating and contriving criminal charges lodged against Khan
- c. although aware of the brutality, and required to report it immediately, deliberately suppressing the truth; and
- d. Submitting false police reports, statements and testimony to support and corroborate the fabricated charges lodged against Khan.

COUNT 2

42 U.S.C § 1983 Unreasonable and Excessive Force

35. Paragraphs 1-34 are incorporated by reference as though fully set forth below.

36. By their conduct, defendants, SCARLATELLI, MARSHALL and RYAN, under the color of law, deprived Khan of his constitutional right to be free from excessive and unreasonable force.

37. Khan claims damages for the injuries set forth above.

COUNT 3

42 U.S.C § 1983 False Arrest and Imprisonment

38. Paragraphs 1-28 are incorporated by reference as though fully set forth below.

39. By their conduct, defendants, SCARLATELLI, MARSHALL and RYAN, under the color of law, deprived Khan of his constitutional right to be free from false arrest and false imprisonment.

40. Khan claims damages for the injuries set forth above.

COUNT 4

42 U.S.C. § 1983 Supervisory Liability

41. Paragraphs 1-40 are incorporated by reference as though fully set forth below.

42. Defendants John Does, at all relevant times, supervisory personal at the 120 precinct of the NYPD, with oversight responsibility for defendants SCARLATELLI, MARSHALL, and RYAN. They were responsible for the training, instruction, supervision and discipline of the defendants SCARLATELLI, MARSHALL, and RYAN who brutalized Khan.

43. These defendants failed to take the preventative and remedial measures to properly guard against the brutality of Khan.

44. The failure of these individual defendants to supervise and discipline defendants, SCARLATELLI, MARSHALL, and RYAN, directly caused the injuries suffered by Khan.

COUNT 5

Negligence/Gross Negligence

45. Paragraphs 1-44 are incorporated by reference as though fully set forth below.

46. At all relevant times defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.

47. As a result of that official status, SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel had a special relationship with Khan.

48. Defendants. SCARLATELLI, MARSHALL, and RYAN had a duty to protect Khan.

49. Despite this duty to protect, defendants recklessly pulled Khan out of his car, pressed his chest against his car and slammed his head into the roof of his car.

50. As a proximate and direct result of defendants' conduct, Khan suffered the injuries and damages described above.

COUNT 6

Negligence/Gross Negligence

51. Paragraphs 1-50 are incorporated by reference as though fully set forth below.

52. At all relevant times defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Does supervisory personnel were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.

53. At all times relevant to the claims in this matter, defendants, John Does have been grossly negligent and negligent in the supervision, training and monitoring of the defendants, SCARLATELLI, MARSHALL, and RYAN.

54. , As a proximate and direct result of defendants' conduct, Khan suffered the injuries and damages described above.

COUNT 7

Assault and Battery

55. Paragraphs 1-54 are incorporated by reference as though fully set forth below.

56. At all relevant times defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.

57. By their actions, as set forth above, defendants SCARLATELLI, MARSHALL, and RYAN committed atrocious acts of battery against Khan which included pulling him out of his car, pressing his chest against his car and finally slamming his face into the roof of his car. The use of physical force against Khan was unnecessary and excessive.

58. , As a proximate and direct result of defendants' conduct, Khan suffered the injuries and damages described above.

COUNT 8

Assault and Battery

59. Paragraphs 1-58 are incorporated by reference as though fully set forth below.

60. At all relevant times defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.

61. Khan was wrongfully, unlawfully and unjustifiably charged, arrested, detained and deprived of his liberty against his will and was imprisoned by defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel.

62. At all relevant times, these defendants acted forcibly in apprehending Khan.
63. At all times mentioned the unlawful, wrongful and false arrest and imprisonment of Khan was without right or probable cause and was forcible and against his will.
64. All the foregoing occurred without any fault or provocation on the part of Khan.

COUNT 9

Intentional and Negligent Infliction of Emotional Distress

65. Paragraphs 1-64 are incorporated by reference as though fully set forth below.
66. At all relevant times defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.
67. In the course of battering Khan and falsely arresting and imprisoning him, defendants SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel embarked on a malicious, willful, and grossly negligent course of conduct intended to cause Khan to suffer extreme mental and emotional distress, agony and anxiety.
68. The aforesaid acts of intentional, reckless and negligent infliction of emotional and mental distress by defendants constitute misconduct of an egregious nature that exceeds all bound usually tolerated by a civilized society.

COUNT 10

Prima Facie Tort

69. Paragraphs 1-68 are incorporated by reference as though fully set forth below.

70. . At all relevant times defendants, SCARLATELLI, MARSHALL, RYAN, and other unknown John Doe supervisory personnel, were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.

71. By their actions, as set forth above, defendants SCARLATELLI, MARSHALL, RYAN, and other unknown John Doe supervisory personnel inflicted harm upon Khan without excuse or justification and out of disinterested malevolence.

COUNT 11

Respondeat Superior

72. Paragraphs 1-71 are incorporated by reference as though fully set forth below.

73. . At all relevant times all defendants, SCARLATELLI, MARSHALL, RYAN and other unknown John Doe supervisory personnel, were employees of the NYPD and the City of New York and were acting for, upon and in furtherance of the business of their employers and within the scope of their employment.

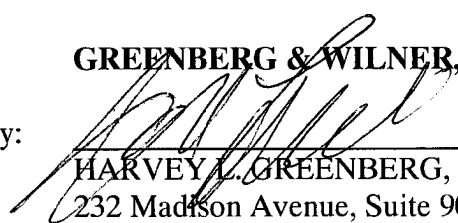
74. Consequently, the City is liable under the doctrine of *respondeat superior* for their tortious actions.

WHEREFORE, Plaintiff requests the following relief jointly and severally as against all of the defendants:

- i) money damages in the amount to be determined at trial;
- ii) punitive damages in the amount to be determined at trial
- iii) disbursements, costs and attorneys' fees; and
- iv) any further relief which the court may deem appropriate

Dated: New York, New York
November 22, 2014

GREENBERG & WILNER, LLP

By: 

HARVEY L. GREENBERG, ESQ.

232 Madison Avenue, Suite 909

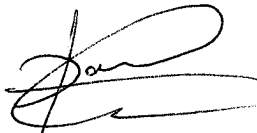
New York, New York 10016

VERIFICATION

STATE OF NEW YORK
COUNTY OF NEW YORK

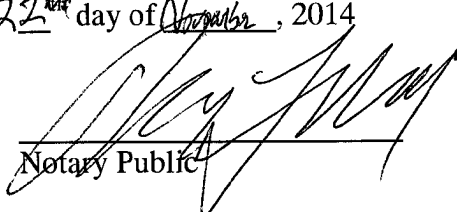
ss:

I, HASSAM KHAN, am the Plaintiff in the above entitled action. I have read the forgoing Complaint and know the contents thereof. The contents are true to my own knowledge except as to those matters therein alleged to be stated upon information and belief, and as to those matters I believe them to be true.



HASSAM KHAN

Sworn to before me this
22nd day of November, 2014



Notary Public

HARVEY L. GREENBERG
NOTARY PUBLIC-STATE OF NEW YORK
No. 02GR4966884
Qualified in New York County
My Commission Expires May 21, 2018